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**Boundaries of Belonging: Contested Citizenship, Statelessness,
and the Bihari Community of Bangladesh**

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Boundaries of Belonging: Contested Citizenship, Statelessness, and the Bihari Community of Bangladesh

Citizenship is often seen as a static, fixed condition, something a person is stuck with at birth or by law and that therefore cannot change over time. The Bihari community of Bangladesh shows that citizenship does not always work this way. Their history is a clear example of what can be called contested citizenship: a status that is repeatedly challenged, redefined, and fought over depending on shifting political power, war, and ideas of national identity, rather than settled once and for all by a single legal decision. A resident of Geneva Camp in Dhaka once told a researcher, "We never left Pakistan, Pakistan has gone and left us" (Siddiqi, 2013, p. 150). This type of competition is possible as explained by Habermas (1996). He contends that citizenship and national identity are only historically associated and that citizenship was never "conceptually bound up with national identity" (p. 495). That is, while individuals may be legal citizens in their state, they may not belong in their country culturally and ethnically. That's what befell the Biharis. They were Urdu-speaking Muslims who migrated to East Bengal around 1947, citizens of the new state of Pakistan; but the creation of Bangladesh in 1971 stripped them of their citizenship status and they remained stateless for more than a decade until they were finally granted citizenship status in 2003 and 2008 in Bangladesh courts. This essay claims that the Bihari case demonstrates that legal citizenship is insufficient to solve exclusion if the nation is constructed on the basis of ethnic and linguistic affiliation instead of legal citizenship alone; although in the end Bangladeshi courts granted citizenship to the Biharis, the status of legal citizenship was never accompanied by that of imagined citizenship. The following sections trace the Bihari story, look at the legal mechanics of their exclusion, examine their long struggle for basic rights, and finally explore the deeper conflict between national and ethnic identity that citizenship law alone could not resolve.

A History of Shifting Belonging

After communal disturbances in Bihar in 1946, many thousands of Urdu-speaking Muslims migrated to East Bengal and following the partition of British India in 1947, many more came to join the newly established Pakistan (Siddiqi, 2013, p. 158). In the following 20 years, the tension with the Bengali speaking majority increased particularly during the 1952 language movement and

during the Liberation War in 1971, some Urdu speakers joined the Pakistani army. The word Bihari was soon attached to the word "razakar" which meant wartime collaborators (Siddiqi, 2013, p. 163). Upon independence, the 1972 Citizenship Order of Bangladesh did not grant any citizenship to non-Bengalis who had applied to return to Pakistan (Siddiqi, 2013, p. 165) and nearly 900,000 speakers of Urdu were left stateless and many of them were held in camps like Geneva Camp in Dhaka (Siddiqi, 2013, p. 164). In fact, it took a long time of legal battles for Bangladesh's High Court to finally declare in 2003 and again in 2008 that Urdu speakers were also Bangladeshi citizens having the right to vote (Siddiqi, 2013, p. 166). This is a history that is constantly subject to change, which is what makes Bihari citizenship a contested citizenship.

The Camp as a Space of Exception and Citizenship on Paper

The Bihari case is a clear example of what Brubaker (1992) calls citizenship as "social closure," meaning that citizenship works by including some people while shutting others out, often through birth and naturalization rules that look neutral on paper but are not neutral in effect (pp. 21-22). Biharis were awarded citizenship by ascription, as they were considered as complete citizens of the new state of Pakistan because they migrated there as Muslim nationals. This same ascriptive logic, however, was against Bangladesh once it gained independence. In 1972, the Citizenship Order finally denied citizenship to all those who had submitted applications to be returned to Pakistan, leading to the loss of citizenship of an entire community, almost overnight (Siddiqi, 2013, p. 165). Even the citizenship they eventually earned was not equal. Many Biharis, however, were still denied the ability to obtain a passport, a formal employment, and even a bank account by the court's ruling in 2008, which was "a historic achievement," according to Sadakat Khan (Siddiqi, 2013, p. 166). This is a similar view given by Haider (2018) in a legal context, claiming that Biharis had, in fact, not lost their Bangladeshi citizenship since President's Order 149 of 1972, but they were treated as outsiders in practice by the ordinary public offices (pp. 27S, 33S). This is a divide between the formal, or passive, citizen and the active citizen, one who could exercise the power to which he had been entitled day by day.

This legal closure is related to the camp, as Agamben (2000) defines it as a space which only emerges when the state of exception is no longer exceptional, but permanent (pp. 38–40). This is

the perfect description of Geneva Camp. Its people have been "officially dead" for decades, in Siddiqi's (2013) words, "not treated as citizens of Bangladesh, nor recognized as refugees under international law" (p. 150). The United Nations refugee agency would not regard Biharis as refugees because they had never crossed an international boundary, they were still on the land on which they had lived all their lives, but their country had, in essence, rejected them (Sen, 1999). This left camp residents in a space of law, near what Agamben describes as bare life, that of a person existing in physical space but not in any real political space or protection. Despite the 2008 decision which granted Biharis legal citizenship, many continue to reside in the same overcrowded camps, without secure land or all economic opportunity. This makes it clear that the space of exception Agamben talks about is not simply eliminated because the law changes in court. This community had on the papers citizenship, but in reality it was a different story.

Statelessness, and the fight for the right to have rights

Before the 2003 and 2008 rulings, the situation of the Biharis matched almost exactly what Arendt (1968) describes as the loss of "the right to have rights" (p. 296), a much deeper loss than losing any single freedom. According to Arendt, the real tragedy of statelessness is not being denied one particular right, but losing any political community that is willing to guarantee rights at all. Sen's (1999) legal analysis of the Bihari case shows how this played out. Two agreements were signed to solve the repatriation problem, one such agreement was signed in New Delhi in 1973 and the other was Tripartite Agreement in 1974 between India, Pakistan and Bangladesh, but only a small number applied, and hundreds of thousands were left behind (Siddiqi, 2013, p. 166). These people were denied refugee status, and denied full citizenship at the same time, leaving them in a legal void that neither international law nor domestic law was meant to resolve. Arendt's theory helps explain why this situation was so damaging: it was not only poverty or crowded housing that harmed the Biharis, it was the complete absence of any state or authority responsible for protecting them.

It was not a change of heart by the Bangladeshi government that brought about a change in this situation, but years of concerted agitation from amongst the Biharis themselves. This is where Balibar's (2015) distinction between constituted power, meaning the existing legal and state

authority, and constituent power, meaning the active demand for rights from ordinary people, becomes useful (pp. 1-28). The Stranded Pakistanis General Repatriation Committee and subsequently the Stranded Pakistanis Youth Rehabilitation Movement had been active for decades filing petitions, holding protests and seeking redressal in courts which responded in 2003 and 2008 (Siddiqi, 2013, p. 166). That is, when there was no push from below by constituted power, the courts and the state did not move. This is consistent with Balibar's overall thesis, which is that the right to have rights is never a gift of the state, but must be acquired and fought for. The Bihari case is an important extension of Arendt's original concept. She was thinking about the people who are physically displaced across borders, but the Biharis show that a person can become stateless without moving at all, simply because the political community around them redraws the line of who counts as one of "us."

Competing Imagined Communities and the Making of the National Outsider

On a deeper level, the Bihari story is not just a legal issue, it's a matter of two imagined communities. As Anderson (1983) puts it, the nation is an imagined community, in the sense that most people who belong to it will never meet face-to-face, but they may share a sense of language, culture, and history. (pp. 6-7). Bengali nationalism in East Pakistan sprang from just such a notion, with a shared nationality based on a common Bengali language and a common opposition to non-Bengali control. But whenever a community imagines itself so narrowly in terms of language and ethnicity, there must also be an 'outside' against which it imagines itself and Urdu-speaking Biharis was that 'outside' too. This is evident in Siddiqi's (2013) interview with a Bihari man she calls Javed Hasan, who states that he feels attached not to Bangladesh, but a more collective, imagined Muslim community that extends beyond India and Pakistan into other areas of the world, with shared history, language, and religion, and not to the country where he resides (p. 170). Hasan's account shows that even after gaining Bangladeshi citizenship on paper, a person can still feel like they belong to an entirely different imagined nation.

It is also at this point that Balibar's (2015) later discussion of citizenship and exclusion is relevant. Exclusion is not just a result of a policy imposed from above; it is also the product of the grassroots, since a community, in order to feel like a "us" (community), must create an "other" (pp. 62-82).

The term *razakar*, which originally referred to collaborators during the war, expanded to include the Biharis in general who were not necessarily war collaborators, and turned the ethnic group into an emblem of national betrayal (Siddiqi, 2013, p. 163). This exclusion was also strengthened by the usual everyday practices. For instance, an organization called *al-Falah* was established specifically for assisting younger Biharis to "become better Bengalis", to write essays in Bengali and to follow Bengali customs to be accepted as a member of the organization (Siddiqi, 2013, p. 166). This is an evidence that membership to Bangladesh was never a matter of having the right documents but of rejecting an older identity as well. Roy (2020) has demonstrated that this is not exclusive to Bangladesh. In South Asia as a whole, citizenship is becoming defined by religious and ethnic features, not just constitutional or legal standards (p. 128), indicating that the Bihari case is not an isolated issue but part of a larger regional problem. This issue of citizenship was resolved in court, but the question of who is, and who isn't, "one of us" was largely left unanswered, as individual social engagements and cultural norms carve out the line between citizens and non-citizens.

Conclusion

The Bihari case illustrates that the terms legal citizenship and national belonging are not synonymous, despite the fact that it may seem that way. From Pakistani citizens in 1947, to stateless camp residents after 1971, to legally recognized Bangladeshi citizens after 2008, the history of the community demonstrates how citizenship can be given and taken away depending on political conditions and not a set rule. Brubaker and Agamben help to explain how the legal closure was able to produce virtually a literal camp, a space of exception in which people were "officially dead" well after the war. Arendt and Balibar help explain why statelessness itself was so damaging, and why real change only came through sustained pressure from the community rather than from the goodwill of the state. Anderson and Balibar together clarify why there was still not a sufficient legal recognition in 2008 to put an end to exclusion, because the roots of the conflict were in two different imagined communities, and one court sentence was not enough to heal them. Finally, the Bihari case serves as a reminder that the "right to belong" is not enough, belonging is a process that begins and does not end with a piece of paper.

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